

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-016
Amendments to Title 5 of the Chickasaw Nation Code
(Victim Rights and Confidentiality)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for courts and procedures, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations to provide specific rights to victims of crime.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 3, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-301.13 **VICTIM RIGHTS.**

- A. A victim of a crime shall have the following rights:
1. to be treated with fairness, respect, and dignity and to be reasonably protected from intimidation, harassment, or abuse throughout the criminal justice process;
 2. to be informed of financial assistance and other social services available as a result of being a victim, including information on how to apply for the assistance and services; and
 3. to be informed of the procedures to be followed in order to apply for and receive any restitution to which the victim is entitled.
- B. In addition to the above, a victim of a violent crime shall have the following rights:
1. to be informed of all hearing dates;

2. to provide the Court with a victim impact statement and an assessment of the risk of future harm;

3. to be present at all hearings and at sentencing of the Defendant, unless prohibited by the rules of evidence or other applicable law;

4. to be heard at any proceeding involving the Defendant's release, plea or sentencing;

5. to be provided a waiting area in the court building that reduces contact with the Defendant;

6. to suggest conditions of probation that may be necessary to ensure the safety of the victim and the victim's family;

7. to request restitution for losses sustained as a direct consequence of any criminal conduct;

8. to apply for victim compensation and be informed of procedures for applying; and

9. to confidential communications with a victim advocate, unless specifically waived.

C. The Prosecutor shall make reasonable efforts to notify a violent-crime victim when the Prosecutor has decided to:

1. decline the prosecution of the crime involving the victim;

2. withdraw the criminal charges filed against the Defendant; or

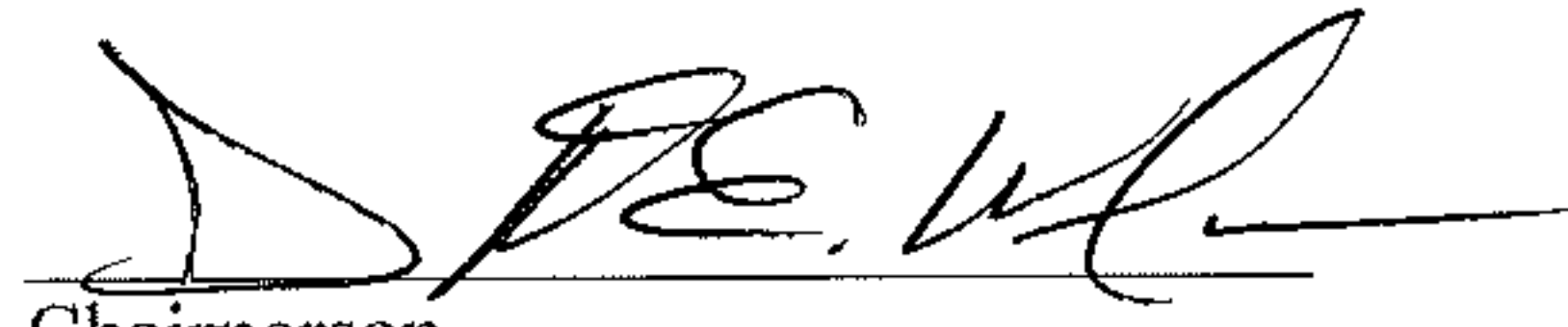
3. enter into a plea agreement with the Defendant.

D. The Prosecutor shall ensure the victim is notified of their rights herein.

SECTION 5-301.14 **CONFIDENTIALITY.**

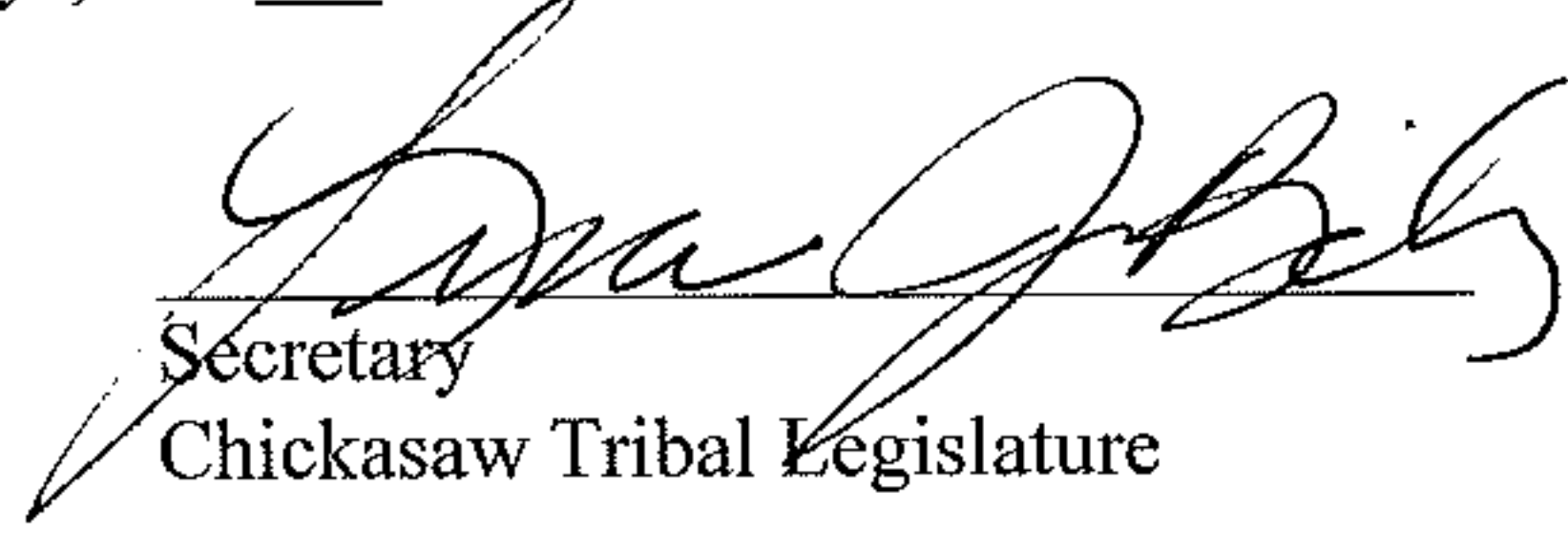
The Chickasaw Nation District Court, upon the request of a victim, witness, the Prosecutor or upon the Court's own motion, may order that the residential address, telephone number, place of employment, or other personal information of the victim or witness shall not be disclosed in any law enforcement record or any court document, other than the transcript of a court proceeding, if it is determined by the Court to be necessary to protect the victim, witness, or immediate family of the victim or witness from harassment or physical harm and if the Court determines that the information is immaterial to the defense.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on March 19, 2021, by a vote of 13 ayes, 0 nays, and 0 abstentions.



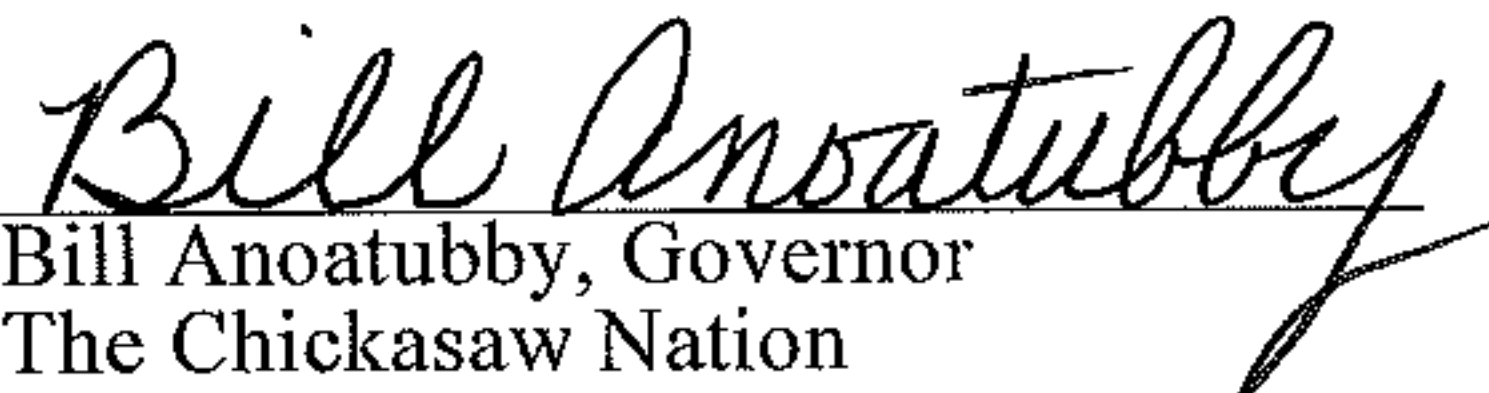
Chairperson

Chickasaw Tribal Legislature



Secretary

Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw NationDate: MAR 20 2021

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Explanation:

This resolution adds two sections to Title 5. The first section provides specific rights to victims of crimes and to victims of violent crimes. The second section allows the court to keep certain information confidential to protect the victim, witness, or immediate family of the victim or witness from harassment or physical harm.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature